

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

CIVIL REVISION NO. 567 OF 2023

Badiul Alam and others

...Petitioners

-Versus-

Nazir Uddin Talukder and others

...Opposite Party

Ms. Nishat Sultana, Advocate for Mr. Lokman
Karim, Advocate

...for the petitioners

Mr. Sudipta Arjun, Advocate with
Mr. Md. Mizanur Rahman, Advocates

...for the opposite parties

Date of hearing: 07.08.2023 & 14.08.2023

Date of Judgment: 17.08.2023

A.K.M. Rabiul Hassan, J:

This rule is directed against the judgment and order dated 29.01.2022 passed by the learned Additional District Judge, 3rd Court, Chattogram, in Miscellaneous Appeal No. 32 of 2017 dismissing the appeal and thereby affirming the judgment and order dated 24.01.2017 passed by the learned Joint District Judge, Banskhal Court, Chattogram in Other Class Suit No. 39 of 2016 rejecting the application for temporary injunction under Order 39 rule 1 and 2 read with section 151 of the Code of Civil Procedure.

At the time of issuance of the rule, this court was pleased to pass an order of status quo in respect of possession of the position of the suit land till disposal of the rule.

Facts relevant for disposal of rule, in short, are that the present petitioners along with proforma opposite party Nos. 46 and 47 as plaintiffs filed an Other Class Suit No. 39 of 2016 before the court of learned Joint District Judge, Banskali, Chattogram impleading the present opposite parties as defendants for declaration of title on the basis of adverse possession and for partition along with other prayers. In that suit, the plaintiffs on the same day filed an application under Order 39 rule 1 and 2 read with section 151 of the Code of Civil Procedure for a temporary injunction against the defendant Nos. 4 and 7. Thereafter, the trial court after hearing the aforesaid application was pleased to reject the same vide its order dated 24.10.2017. Being aggrieved, the plaintiffs as appellants filed Miscellaneous Appeal No.32 of 2017 before the learned District Judge, Chattogram. On being transferred the said appeal was heard by the Additional District Judge, 3rd Court, Chattogram. Upon hearing of both sides, the appellate Court dismissed the appeal vide its order dated 29.01.2023. Being aggrieved, the plaintiffs-appellants-petitioners preferred revisional application before this Court under section 115(1) of the Code of Civil Procedure and obtained the instant rule and status quo in respect of the possession and position of the suit land.

During the hearing of the instant Rule, Ms. Nishat Sultana, the learned Advocate for Mr. Lokman Karim, Advocate appeared for the petitioners while Ms. Sudipta Arjun, Advocate with Mr. Md. Mizanur Rahman, the learned Advocate appeared for the opposite parties.

Both the learned Advocates for the contending parties taking this court to the rule issuing order and submit that at the time of issuance of the rule, a direction was given by this Court to the parties for maintaining the status quo in respect of the possession and position of the suit land and till today, both the parties are maintaining the said order of status quo as per the direction given by this Court.

The learned Advocates further submit that if the instant rule is disposed of by retaining the said order of status quo, which is to be maintained by the parties till disposal of the original suit i.e. Other Class Suit No. 39 of 2016 and a direction also to be given upon the trial court to dispose of the aforesaid suit within time fixed by this Court and in the meantime, either party will not make any transfer about the suit land.

Heard the submissions of the learned Advocates of both sides and perused the revisional application along with the impugned orders thoroughly.

Upon giving due consideration to the joint submissions advanced by learned Advocates of both sides as well as the facts and circumstances of this case, this Court also thinks fit that the ends of justice would be met if this Court is allowed the joint prayers of the parties herein.

Therefore, this Court is not entering into other merits of the instant case rather than appreciating the joint submissions of the learned Advocates for both sides.

As a result, the Rule is disposed of without any order as to cost.

The trial court is hereby directed to dispose of the Other Class Suit No.39 of 2016 within 6 (six) months from the date of receipt of this judgment without giving any unnecessary adjournments to either party in accordance with the law.

The parties are hereby directed to maintain status quo in respect of the possession and position of the suit land till the disposal of the Other Class Suit No. 39 of 2016.

Communicate a copy of this judgment to the court concerned at once.

(A.K.M. Rabiul Hassan, J)